

UNITED STATES DISTRICT COURT  
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

v.

No. 6:18-CR-06018-DGL-MWP

JEFFREY BERNECKY,

Defendant.

**DEFENDANT’S MOTION TO MODIFY CONDITIONS OF  
SUPERVISED RELEASE**

**PURSUANT TO 18 U.S.C. § 3583(e)(2) AND FED. R. CRIM. P. 32.1(c)**

Defendant Jeffrey Bernecky, proceeding *pro se*, respectfully moves this Court, pursuant to 18 U.S.C. § 3583(e)(2) and Federal Rule of Criminal Procedure 32.1(c), to modify the conditions of supervised release imposed by the Judgment entered June 12, 2018 (Dkt. 28). In support of this motion, Mr. Bernecky states as follows.

## **PRELIMINARY STATEMENT**

The commencement of supervised release marks a critical juncture for any defendant. Having completed his term of imprisonment, he now begins the next phase — supervised release — during which he must reintegrate into his community and prove himself a productive, law-abiding member of it, all while still serving the sentence the Court imposed. The conditions that will govern that reintegration, however, are almost always fixed years earlier, at a sentencing hearing where the room's attention is on one question only — how much time the defendant will spend in prison — and rarely on how a computer-monitoring clause will read once that defendant is actually applying for jobs, whether a risk-notification condition already invalidated in this Circuit was ever actually corrected on his own Judgment, or what a treatment provider will demand of him once a program the Court ordered in the abstract acquires an actual administrator with an actual set of rules. The years that typically separate sentencing from the start of supervision produce exactly the kind of gap this motion addresses: conditions whose text was never tested against a real circumstance, about to be tested against many of them at once.

Mr. Bernecky's case shows what that gap looks like in practice, and it has already produced real consequences before his supervision has even begun. He was sentenced in 2018. His ten-year term of supervision begins on or about July 30, 2026. In the interval, an employer that offered him permanent, full-time work read Special Condition (a)'s text on its own and grew concerned that a monitoring provision written for Mr. Bernecky might extend to the company's own systems — a possibility no one at sentencing was ever asked to consider. Probation has since given two different informal answers to that concern, neither in writing and neither consistent with the other, and the employer has told Mr. Bernecky not to report to work until the question is resolved. He has been out

of work for roughly two weeks, at the exact moment he is completing his transition out of Bureau of Prisons custody and has just taken on a one-year apartment lease. In the course of that same job search, Mr. Bernecky was separately told that Special Condition (c) — a condition aimed at deliberate contact with children — would bar him from working anywhere that merely hires or serves anyone under eighteen, a reading that would eliminate an enormous share of entry-level employment. He has just received notice of an approaching state sex-offender risk-classification hearing, and Special Condition (e)’s plain language authorizes disclosure of his presentence report to that proceeding without the individualized showing the law has required of exactly this kind of disclosure for more than forty years. And earlier still, during a pre-supervision meeting, his probation officer handed him a risk-notification condition the Second Circuit had already held invalid, and asked him to sign an acknowledgment of it — the same language this District’s own standing order had already directed be removed from every judgment in the district, more than seven years earlier.

None of this is a single bad actor or a single unlucky break. It is the same structural problem recurring across nine separate conditions: text drafted broadly enough to cover the worst case, at a moment when nobody needed to test its limits, is now being read as broadly as its words can possibly be stretched by whoever happens to be applying it — an employer’s HR department, a treatment provider, a probation officer, a state board that never even asked for the document it is about to receive. Nowhere in this pattern does the 2018 Judgment need to have been wrong for any of this to be true. The problem is what happens after a Judgment goes silent on a question nobody thought to ask, and someone else has to decide what that silence means.

Congress created this authority in Section 3583(e)(2) precisely so that a defendant does not have

to wait and find out the hard way, and Rule 32.1(b)'s own drafters explained exactly why: "the probationer should be able to obtain resolution of a dispute over an ambiguous term or the meaning of a condition without first having to violate it." Fed. R. Crim. P. 32.1 advisory committee's note to subdivision (b) (1979). Mr. Bernecky asks the Court to use that authority now, at the moment the Sentencing Commission's own November 2025 amendment identifies as the right one: the start of supervision. *See* U.S.S.G. § 5D1.4(a) (2025). This is not a challenge to the 2018 sentence and does not ask the Court to reopen anything the sentencing judge actually decided. It asks for nine corrections, taken up one condition at a time in the order the Judgment lists them, so that when Mr. Bernecky's term of supervision begins in the coming days, he begins it knowing what each condition actually requires — not discovering it, one violation report at a time, from whoever happens to be enforcing it against him.

## **JURISDICTION AND STANDARD OF REVIEW**

This motion is brought pursuant to 18 U.S.C. § 3583(e)(2), Federal Rule of Criminal Procedure 32.1, and U.S.S.G. § 5D1.4. This Court is authorized to modify, reduce, or enlarge the conditions of Mr. Bernecky's supervised release "at any time prior to the expiration or termination of the term of supervised release, pursuant to the provisions of the Federal Rules of Criminal Procedure relating to the modification of probation." 18 U.S.C. § 3583(e)(2). Rule 32.1(c) codifies that authority for exactly this circumstance: its own drafters explained that "in cases of neglect, overwork, or simply unreasonableness on the part of the probation officer, the probationer should have recourse to the sentencing court when a condition needs clarification or modification." Fed. R. Crim. P. 32.1 advisory committee's note to subdivision (b) (1979). That recourse is what Mr. Bernecky invokes

here.

The authority is general and forward-looking. *United States v. Lussier*, 104 F.3d 32, 36 (2d Cir. 1997) (the Advisory Committee’s Notes explain that “the sentencing court must be able to respond to changes in the [defendant’s] circumstances as well as new ideas and methods of rehabilitation”). This motion is built on exactly that kind of change: since 2018, Mr. Bernecky’s family circumstances, his financial obligations, the technology these conditions were written to address, and the governing law itself have all moved, and each Part below documents the specific change that supports the relief requested there.

The statute permits modification “*at any time*,” and the Sentencing Commission’s most recent guidance affirmatively invites courts to reassess existing conditions “in consultation with the probation officer after the defendant’s release from imprisonment” — Mr. Bernecky’s exact circumstance right now. U.S.S.G. § 5D1.4(a) (2025). There is no reason to leave any of the following questions for after supervision starts when the record already supports resolving them today.

## **STATEMENT OF FACTS**

On June 12, 2018, the Honorable David G. Larimer sentenced Mr. Bernecky to 120 months’ imprisonment and ten years of supervised release. Mr. Bernecky pleaded guilty quickly, to possessing child pornography involving prepubescent minors, and that sentence was imposed concurrently with the resolution of a supervised-release violation from an earlier federal conviction, at docket 6:11-CR-06045-001, for possessing and distributing child pornography. Mr. Bernecky is a recidivist on this record, and this motion does not ask the Court to look past that fact. What the record also shows, and what this motion does rely on, is that Mr. Bernecky has been cooperative and honest

with supervision authorities, including his current probation officer, throughout the period since. He is scheduled to complete his prison term and begin his ten-year term of supervision on or about July 30, 2026.

The facts specific to each condition addressed in this motion — including the employment disputes Special Conditions (a) and (c) have already produced, the status of the restitution obligation underlying Special Condition (i), the approaching state classification proceeding underlying Special Condition (e), and the circumstances surrounding Standard Condition 12’s risk-notification language — are presented together with the corresponding argument below, for ease of reference.

## **ARGUMENT**

### **I. Special Condition (a) — The Computer and Internet Monitoring Program**

Once Mr. Bernecky’s term of supervision begins, Special Condition (a) will require him to participate in CIMP as a condition of using any “internet capable device,” will authorize Probation to install monitoring software on any device “owned or operated by the defendant,” and will authorize unannounced examinations of any computer equipment “owned or used by the defendant,” with any monitoring required to “avoid, as much as possible, reading any privileged information.” Three problems follow from that text, addressed in turn below. First, at sentencing the Court was never asked to, and did not, undertake an occupational-restriction analysis, and a recent incident shows the condition is genuinely unclear on whether it reaches an employer at all. Second, the condition never specifies what CIMP monitoring actually consists of, leaving the most invasive method available — one Mr. Bernecky has already experienced under a similar condition — to be selected by default. Third, the words the condition uses to decide whose devices are covered — “operated”

and “used,” as distinct from “owned” — have become untenable since 2018, now that ordinary daily life runs through networked devices no one could seriously call an extension of Mr. Bernecky’s own computer.

**A. At sentencing, the Court was not asked to, and did not, engage in an occupational-restriction analysis — and a recent incident shows why that gap matters.**

An occupational restriction requires the sentencing court to find “a reasonably direct relationship . . . between the defendant’s occupation, business, or profession and the conduct relevant to the offense of conviction,” together with a finding that nothing less restrictive would work. U.S.S.G. § 5F1.5(a); *see United States v. Peterson*, 248 F.3d 79, 85-86 (2d Cir. 2001) (per curiam). The lynchpin of Mr. Bernecky’s position is not that this analysis was never performed; it is that Special Condition (a) was never intended to reach his employment at all — and nothing in the Judgment says otherwise. An occupational restriction, when a sentencing court actually imposes one, takes the same form as every other restriction on Mr. Bernecky’s liberty in this Judgment: a written condition on Sheet 3B. Special Condition (a) restricts what Mr. Bernecky may do with his own devices; it says nothing about his occupation, his employer, or his choice of work, because it was never written to. Mr. Bernecky has never been alleged to have used an employer’s computer systems to commit any offense; his conduct occurred entirely on devices he acquired in his own name. Nothing in this record supplies the “reasonably direct relationship” § 5F1.5 demands between his occupation and his offense, because no one has ever had occasion to look for one.

The original sentencing court’s intention is paramount, and that intention is what it wrote into the Judgment — not what might be assumed, years later, to have gone unwritten. An occupational restriction does not exist as an unstated inference layered onto a condition that never mentions

occupation at all; if the sentencing court had meant to restrict Mr. Bernecky's employment, that restriction would appear on the face of the Judgment, the same as every other condition of his supervision does. None does. The only intention this condition can fairly be read to carry is the one the Judgment actually contains, and it contains no occupational restriction at all.

A recent incident shows this is not an academic point. While housed at the Rochester Residential Reentry Center, Mr. Bernecky obtained temporary work with a contact-lens manufacturer, and after roughly ninety to one hundred twenty days — the point at which the company's own practice allows a temporary worker to be considered for direct hire — the manufacturer invited him to apply for permanent, full-time employment. He disclosed his conviction and his coming conditions in full, including the Judgment itself once a general description did not resolve the company's questions. The company's human resources office asked, understandably, whether Special Condition (a) would require it to open its own computer systems to federal monitoring simply because Mr. Bernecky was on its payroll — a question the condition's text does not answer, because no one ever asked the sentencing court to answer it.

Trying to get that question resolved before it cost him the job, Mr. Bernecky asked his probation officer directly whether the company's own account restrictions might substitute for the monitoring the condition otherwise contemplates. The officer's first answer was that whatever the company put in place would need to satisfy an unspecified federal standard — an honest answer, but not one drawn from any finding this Court ever made, because none exists. When the company, still waiting on an answer, told Mr. Bernecky not to report to work until the question was resolved, he left his probation officer a voicemail and forwarded the company's own email describing its concern. After further back-and-forth over roughly a week, the officer told him that an account



without internet access, paired with the company’s own monitoring capability, would satisfy her, and that she intended to convey that same understanding directly to the company. Mr. Bernecky does not fault his probation officer for any of this. She was doing her best to answer a question this Judgment gives her no tool to answer, prompted by an employer who — quite reasonably — wanted assurance before opening its own systems to anyone. The problem is not that anyone acted in bad faith; it is that an informal, unwritten, ad hoc understanding, arrived at after two weeks without pay, is the only thing standing between Mr. Bernecky and his next job, and the one after that, for as long as this condition goes uncorrected.

The Second Circuit’s own recent decisions confirm how much is at stake in leaving that answer unwritten. Even a bare employer-*notification* clause, far milder than a monitoring-capability requirement, has been treated as an occupational restriction demanding exactly this showing. *See United States v. Love*, No. 24-1706-cr, 2025 WL 1077176 (2d Cir. Apr. 8, 2025); *United States v. Jenkins*, 854 F.3d 181 (2d Cir. 2017); *United States v. Ruff*, No. 18-3247-cr (2d Cir. Nov. 14, 2019) (vacating outright); *United States v. Lombardi*, No. 17-2352-cr (2d Cir. Mar. 22, 2018) (remanding); *United States v. Piper*, No. 19-1058-cr (2d Cir. Mar. 30, 2020) (remanding). Special Condition (a) imposes no notification requirement at all — Mr. Bernecky volunteered one anyway — and it has already produced something considerably heavier than notification: a real capability dispute with a real employer, months before supervision even begins.

*United States v. Brown*, 173 F.4th 45 (2d Cir. 2026), does not change this analysis. Brown argued his condition operated as a *compelled* notification requirement; Mr. Bernecky makes no comparable claim, since his own disclosure was voluntary and the employer already accepted it. Brown’s condition also contained its own “as permitted by the employer” consent mechanism, which this

condition lacks entirely, and the Brown panel resolved the occupational-restriction question on plain-error review.

Leaving this to be resolved informally, one anxious employer at a time, fixes nothing; a written order does. The Tenth Circuit confronted the identical confusion over materially the same condition language in *United States v. Mike*, 632 F.3d 686, 696-97 (10th Cir. 2011), where even the government conceded the condition “cannot be read fairly” to reach an employer’s computers — and the court did not leave that ambiguity standing. It remanded with instructions to clarify the condition, directing that if the district court actually meant to reach an employer’s devices, it would first need to make the § 5F1.5 findings. *Id.*; see also *United States v. Matteson*, 327 F. App’x 791 (10th Cir. 2009). Mr. Bernecky anticipates the government may respond that the condition’s own “internet capable device” language reaches an employer’s computers regardless of what any individual employee account can do — but that reading proves too much: it would mean every employer of every person on CIMP supervision has its entire computer network conscripted into a federal monitoring program the moment it hires that person, a result no § 5F1.5 finding in this record authorizes and no employer would knowingly accept. The relief requested is the one *Mike* itself ordered: a clarification that, absent any § 5F1.5 finding in this record, Special Condition (a) will not be read, once supervision begins, to reach an employer’s own systems.

There is a further, independent reason for the Court to resolve this now, apart from Mr. Bernecky’s own stake in his employment. An employer with no connection whatsoever to this criminal case, and no opportunity to be heard in it, is left to guess whether hiring Mr. Bernecky opens its own computer systems to federal surveillance — and that employer will never realistically appear in this case to protect its own interest in not being drawn into someone else’s supervision. Courts have

long recognized exactly this kind of interest as one worth accounting for even when it is not the party before the court that holds it, precisely because the party who does hold it has no practical way to assert it itself. *See Powers v. Ohio*, 499 U.S. 400, 410-15 (1991) (permitting a criminal defendant to raise excluded jurors’ own rights because the jurors faced a practical barrier to litigating the violation themselves); *Singleton v. Wulff*, 428 U.S. 106, 117 (1976) (permitting physicians to assert their patients’ rights where a “genuine obstacle” stood between the right-holder and the courthouse); *Warth v. Seldin*, 422 U.S. 490, 499-500 (1975) (describing that same practical-obstacle exception to the general rule against asserting a third party’s own rights); *cf. Kowalski v. Tesmer*, 543 U.S. 125, 130-31 (2004) (denying standing where no comparable obstacle existed, since the right-holders could simply assert their own claims once identified). An employer facing this condition’s silence has exactly the obstacle *Powers* and *Singleton* describe, not the absence of one *Kowalski* found dispositive: it has no vehicle to appear in someone else’s criminal case and protect its own interest before the harm — losing the use of its own systems, or losing an employee it already wanted to hire — has already occurred.

**Requested relief as to Part A:** an order amending Special Condition (a) to add clarifying language along the lines of “with the exception of systems necessary for employment” — confirming, consistent with the absence of any § 5F1.5 finding in this record, that the condition was never intended to reach Mr. Bernecky’s employment, and imposes no burden on any employer, regardless of what that employer’s own systems can or cannot do.

**B. The condition never specifies what monitoring actually consists of, and Mr. Bernecky should not be subjected to blanket surveillance of every word he types simply because no one ever wrote down anything narrower.**

Nothing in Special Condition (a) says how CIMP monitoring will actually be carried out. Left blank, that gap gets filled by whatever Probation's standard practice happens to be, and the record here already supplies an answer: Mr. Bernecky's previous term of supervision imposed a materially similar condition, and its administration resulted in continuous keystroke logging, capturing everything he typed on every covered device. Upon information and belief, he expects the same here. Keystroke logging is not one option among several; it is the most extreme point on the spectrum of available monitoring methods, a wholesale, content-blind capture rather than any kind of targeted review. *See United States v. Lifshitz*, 369 F.3d 173, 192-93 & n.11 (2d Cir. 2004) (comparing unfiltered monitoring to "searching a defendant's diary," and identifying keyword- or phrase-triggered review as a narrower alternative). Mr. Bernecky submits that defaulting to that extreme is unnecessary, and that the choice belongs to the Court in the first instance, not to Probation's own administrative practice.

Arguably the most important of the reasons the choice matters is privilege — protecting the various privileges that survive a conviction. Keystroke logging cannot distinguish an ordinary message from the kinds of communication the law has long protected as confidential: a conversation with an attorney, "the oldest of the privileges for confidential communications known to the common law," *Upjohn Co. v. United States*, 449 U.S. 383, 389 (1981); a confession to a member of the clergy, made in a spiritual capacity with a reasonable expectation of confidence, *In re Grand Jury Investigation*, 918 F.2d 374, 384 (3d Cir. 1990); a session with a psychotherapist, protected under Federal Rule of Evidence 501 because candid treatment depends on confidentiality, *Jaffee v. Redmond*, 518 U.S. 1, 10-15 (1996); and a private communication between spouses, protected independently of any privilege against adverse testimony, *Blau v. United States*, 340 U.S. 332 (1951); *Trammel v. United*

*States*, 445 U.S. 40, 51 (1980) — just to name a few examples. Keystroke logging captures every one of these along with everything else, before anyone has any chance to sort privileged material from anything at all. Special Condition (a) already promises that monitoring will “avoid, as much as possible, reading any privileged information or any private material that is not illegal,” and *Kunz* has held that promise to be a real, enforceable limit on Probation — “constrain[ing] the supervisors in their surveillance . . . by requiring them not to abuse their power and access,” not empty language. 68 F.4th at 766-67. A method that records everything cannot keep that promise; there is nothing left to avoid once everything has already been captured.

Formal privilege is not the only zone of private life keystroke logging would reach. A diary, a private draft of a memoir Mr. Bernecky might one day want to publish, research into buying a few shares of Tesla stock, or a running, unsent complaint about his own probation officer are not privileged in the technical sense, but they are not the target of any supervisory interest CIMP is meant to serve either, and Mr. Bernecky should not have to give up ordinary private thought and expression simply because a computer happens to be where he keeps it. The Supreme Court has already recognized what that loss looks like at the scale a modern device makes possible: unlike anything a person could once have carried by hand, a phone or computer today holds “the sum of an individual’s private life,” reconstructed not from a photograph or two but from everything a person has written, searched, or kept — a volume of personal material that, before devices like these existed, “most people cannot lug around” at all. *Riley v. California*, 573 U.S. 373, 393-97 (2014). Keystroke logging does not merely risk capturing privileged communications; it captures everything else too, indiscriminately, at a volume no era before this one would have found searchable in the first place.

Nor does Mr. Bernecky's own offense call for going that far. He was convicted of possessing images, not of anything involving written communication, and the Second Circuit has already approved considerably narrower tools for this exact category of offense: a restriction "limited to pornography sites and images" in *United States v. Sofsky*, 287 F.3d 122, 126-27 (2d Cir. 2002), and the keyword-triggered alternative *Lifshitz* itself identified, rather than "recording all varieties of computer-related activity." 369 F.3d at 193 n.11. Nothing about an image-possession offense calls for capturing every word a person types, any more than it would call for recording every conversation in his home.

None of this means Mr. Bernecky should go unmonitored. This is his second sex-offense-related conviction, and he agrees that his computer use warrants real supervision. What he asks for is that the supervision be pointed at the actual risk: WDNY's own CIMP vendor, IPPC Technologies, already sells a periodic, non-continuous review tool called "Express Scan," and Mr. Bernecky offers to submit to it, configured specifically to flag image content, search terms, and other material relevant to child pornography — not to log everything he types regardless of subject.

**Requested relief as to Part B:** an order specifying that Special Condition (a)'s monitoring method will be IPPC's Express Scan, or an equivalent periodic, non-continuous tool, configured to flag image content, search terms, and other material relevant to child pornography, in place of continuous keystroke capture; or, if that configuration is not administratively available, any other method that does not sweep in privileged or non-image material — domain review, file-type filtering, image-hash scanning, or the keyword-triggered approach *Lifshitz* already identifies.

**C. Since Mr. Bernecky's 2018 sentencing, the words "operated" and "used" have become untenable measures of whose devices this condition reaches, and should be struck in favor of**

**the ownership standard the condition already uses elsewhere.**

The condition ties its two most intrusive authorizations to a verb other than ownership: Probation may “surveil all activity on computer(s) or connected device(s) owned *or operated* by the defendant,” and may conduct unannounced examinations of “any computer equipment owned *or used* by the defendant.” In 2018, “operated” and “used” may have read as harmless synonyms for “owned.” They do not read that way today. The years since Mr. Bernecky’s sentencing have moved ordinary life from an internet-access world — a defendant sits down at a computer he owns and connects it to the internet — to an internet-of-things world, in which most of what a person interacts with over the course of an ordinary day is itself a networked computer. Federal law’s own definition of “computer” shows how far that shift has gone: “an electronic, magnetic, optical, electrochemical, or other high speed data processing device performing logical, arithmetic, or storage functions.” 18 U.S.C. § 1030(e)(1) (Computer Fraud and Abuse Act). Read against that definition, and untethered from ownership, “operated” and “used” sweep in a public library’s computer terminal, a store’s self-checkout kiosk, a bank’s ATM, and a car’s onboard entertainment and navigation system — every one of them a device Mr. Bernecky “uses” in the ordinary sense of that word, and none of them a device the condition’s drafters could plausibly have meant to place under CIMP surveillance.

*Kunz* confirms that this Court is willing to read CIMP’s boilerplate sensibly rather than literally when a literal reading would sweep too far — but the facts there were far milder than these. The question in *Kunz* was whether an encryption-related clause required pre-approval every time a supervisee visited an ordinary “https” site or sent an encrypted message; no one had actually treated that reading as live, and the court needed only say so. 68 F.4th at 764-65. Mr. Bernecky is not asking the Court to head off a hypothetical misreading. The reading he is up against has already been

treated as live: an employer worried enough about what “operated” and “used” might require of its own systems to withhold his job for two weeks, and Probation resolved the question only through an improvised, unwritten understanding, not through any settled interpretation of the condition’s actual text. An interpretive canon that depends on everyone recognizing the same “obvious” meaning does not solve a problem that has already produced a real, live dispute over what that meaning is. That is why the fix Mr. Bernecky requests is to strike the words, not to ask the Court to bless a narrower reading of them and hope the next employer reads it the same way. Other circuits have long recognized that some device-scope boundary is necessary. *United States v. Ullman* drew that boundary at internet access itself, treating “devices without Internet access, such as gaming systems” as outside a comparable condition’s reach. No. 14-1414, 2015 WL 3559221 (10th Cir. June 8, 2015). That particular boundary no longer does useful work: gaming systems, medical devices, home appliances, and cars are now routinely internet-connected, so a line drawn at internet access alone would exempt almost nothing. The boundary that still does useful work is the one *Kunz* itself points to — capability to access, search for, or display child pornography specifically, not connectivity in the abstract. A modern smart television illustrates the difference precisely: it connects to the internet to deliver services like Netflix and Apple TV, often without any web browser at all, and no one could seriously argue that Netflix is airing illegal child pornography, or that a device built only to stream it presents the risk CIMP exists to manage. The word “operate” plainly reaches any system Mr. Bernecky might interact with in public — a self-checkout kiosk, a car equipped with OnStar, FordPass Connect, or comparable telematics, and countless other everyday devices — not just the private setting in which child pornography is actually accessed in the typical case, and in his own.



Rather than ask the Court to police that boundary case by case, Mr. Bernecky proposes a cleaner fix: strike “or operated” and “or used” from the condition’s device-scope clauses, leaving “owned by the defendant” as the operative standard — exactly the word the condition already uses elsewhere without difficulty. In exchange, Mr. Bernecky proposes a targeted provision addressing the actual risk an ownership-only standard might otherwise leave open, one precise enough not to reintroduce the same overbreadth in a different form. A prohibition on using any device merely “capable of” accessing child pornography would do exactly that: a library terminal, a self-checkout kiosk, even the PACER terminal at the courthouse itself — the only free way to review federal court records — are all technically capable of displaying an illegal image if someone chose to misuse them that way. The line that actually distinguishes a real circumvention risk from ordinary public infrastructure is personal, private possession, not momentary public use: “With the exception of employer devices necessary for work performance, the defendant shall not personally and privately possess any smart cell phone, laptop, desktop computer, tablet, or other device capable of connecting to the internet and displaying images of child pornography.” That reaches what “operated” and “used” were likely meant to reach in the first place — a borrowed device standing in for one Mr. Bernecky does not himself own — without also reaching a library computer, a self-checkout kiosk, an ATM, or a courthouse terminal no one could seriously call an extension of his own private life. Employer systems, with the exception already discussed above, are unaffected.

**Requested relief as to Part C:** an order striking “or operated” and “or used” from Special Condition (a)’s device-scope clauses, leaving “owned by the defendant” as the operative standard, together with the following provision: “With the exception of employer devices necessary for work performance, the defendant shall not personally and privately possess any smart cell phone, laptop, desktop

computer, tablet, or other device capable of connecting to the internet and displaying images of child pornography.”

## **II. Special Conditions (b) and (h) — Treatment Provider Rules**

Once supervision begins, Special Condition (b) will require Mr. Bernecky to “follow the rules and regulations” of a sex-offense-specific treatment program, and Special Condition (h) will separately place him in a mental health treatment program supervised the same way. The danger that text leaves unaddressed is not simply that a provider’s rule might exceed what this Court itself ordered — Browder already establishes that it cannot. The danger is what currently stands between Mr. Bernecky and a violation report the moment he says so. Nothing in Special Condition (b) stops a probation officer from filing a violation report the instant Mr. Bernecky objects to a provider’s rule, or the instant a provider terminates him for refusing to accept one, leaving him to vindicate the point only through a revocation proceeding — detention, litigation, and the risk of a new sentence — before anyone with authority to decide the question agrees he was right. To be clear about what this Part does and does not address: it does not ask the Court to police Probation’s broader practice of treating every termination from, or every complaint by, a treatment provider as if it were automatically a violation. It addresses the narrower and sharper problem of what happens when a provider’s own rule purports to condition Mr. Bernecky’s liberty beyond what this Court’s Judgment actually authorizes, and he says so.

*United States v. Browder* shows exactly what that costs a defendant who says so. Browder’s treatment provider required him to sign an agreement barring contact with *any* minor, including his own children, even though his actual sentence specifically excluded his own children from that

restriction. Browder objected in writing and did not sign. His probation officer sought a violation anyway — without first confirming she had even read Browder’s written objection — and Browder was detained and found, by the district court, to have violated his conditions by a preponderance of the evidence. 866 F.3d at 507-08, 513-14. It took a full appeal to undo that result. The Second Circuit held that the treatment provider’s rule “would contradict, rather than execute,” Browder’s actual sentence, and that “the Probation Office was plainly without power to impose it.” *Id.* at 514. The court was direct about what had gone wrong: “the key question is not whether permission, if sought, would be granted; it is whether Browder can be required, by the Probation Office or its designee, to ask in the first place.” *Id.* Browder did exactly what a defendant in his position should be able to do — he objected in writing rather than simply violating the rule outright — and it did not spare him a revocation proceeding, a detention, or a violation finding. Only a full appeal did, with the Second Circuit confirming what should have been true from the start: Browder “was therefore well within his rights to object to that term of the agreement.” 866 F.3d at 513.

The drafters of Rule 32.1 anticipated exactly this problem, and answered it the same way Mr. Bernecky now asks this Court to. The Advisory Committee’s note explains that “the probationer should be able to obtain resolution of a dispute over an ambiguous term or the meaning of a condition without first having to violate it,” precisely because “in cases of neglect, overwork, or simply unreasonableness on the part of the probation officer, the probationer should have recourse to the sentencing court when a condition needs clarification or modification.” Fed. R. Crim. P. 32.1 advisory committee’s note to subdivision (b) (1979). Browder is what happens when that recourse exists in theory but not in the procedure actually available to a defendant: he did precisely what the Advisory Committee said a probationer should be able to do, and it still took an appeal — not a

request to his own sentencing court made before the fact — to establish that he had been right all along.

Special Condition (h) creates the identical exposure for Mr. Bernecky’s separately ordered mental health treatment, and nothing about Browder’s reasoning turns on which kind of treatment provider is involved. Special Condition (h) uses the same structure as Special Condition (b): the probation officer “supervise[s] the details of any testing and treatment, including the selection of a provider and schedule,” and Mr. Bernecky “is not to leave such treatment until completion or as ordered by the Court” — language that tracks, almost word for word, Special Condition (b)’s own “not to leave treatment until complete or as ordered by the Court.” A mental health provider is no more entitled than a sex-offense-specific treatment provider to impose a rule this Court never ordered, and a mental health provider’s own decision to terminate Mr. Bernecky is no more capable, by itself, of supporting a violation finding than the sex-offense-specific provider’s decision was in Browder itself. The same procedure requested below should apply equally to Special Condition (h).

Mr. Bernecky asks the Court to make that recourse real for him, before supervision begins, rather than leave him to discover only after a violation report has already been filed that Rule 32.1’s own drafters meant to spare him exactly that. He requests the right to object in writing to his probation officer to any rule imposed by a provider under Special Condition (b) or (h), or any application of such a rule, that he believes conditions his liberty beyond what this Court’s Judgment authorizes, as it now stands or as later modified; and, if the probation officer overrules that objection, the right to seek this Court’s clarification before any violation report is filed on that basis. This does not ask the Court to compel any provider to continue treating a defendant who will not voluntarily accept a rule beyond what the Judgment requires — a provider remains free to terminate treatment on that basis.

It asks only that a timely, written objection made under this procedure keep that termination from being treated, by itself, as a violation of supervised release. If a provider terminates Mr. Bernecky specifically because he made such a timely, written objection, that termination cannot be used to violate him, and the Probation Office must instead make other arrangements for his treatment — the choice to terminate was the provider’s own, made in response to a rule this Court never authorized, and cannot be converted into Mr. Bernecky’s own failure to comply with anything this Court actually ordered. Mr. Bernecky should not be forced to choose between accepting a restriction this Court never ordered and risking exactly what happened to Browder.

**Requested relief as to Part II:** an order providing that, where Mr. Bernecky believes a rule imposed by a provider under Special Condition (b) or (h), or a provider’s application of such a rule, conditions his liberty beyond what this Court’s Judgment authorizes, he may object in writing to his probation officer; that he may seek this Court’s clarification if the probation officer overrules that objection; that no violation report may be filed, and no violation of supervision found, based solely on a provider’s termination of Mr. Bernecky following a timely written objection made under this procedure; and that where a provider terminates Mr. Bernecky on that basis, the Probation Office must make other arrangements for his treatment rather than treat the resulting absence of treatment as a violation.

### **III. Special Condition (c) — Contact with Minors and Loitering**

Special Condition (c) provides: “The defendant shall not have deliberate contact with any child under 18 years of age, excluding his biological or adopted children, unless approved by the probation officer or by the Court.” Mr. Bernecky has no biological or adopted children, so the only category of

contact this condition permits without seeking advance approval has never existed for him and never will. Every other contact with a child — including with his own nieces, nephews, or any other minor family member — requires him to seek case-by-case advance permission from Probation or the Court, for the next ten years, before it happens. Three problems follow from that structure, addressed below in order of importance: first, and most serious, it will functionally exclude Mr. Bernecky from ordinary family life; second, the condition draws no line between deliberate contact and the incidental contact no one could reasonably ask him to avoid; third, the condition risks operating as an unauthorized restriction on his choice of occupation.

**A. Requiring advance approval before any contact with a minor family member, for the next ten years, will not merely burden Mr. Bernecky’s relationship with one relative — it will functionally exclude him from ordinary family life.**

Mr. Bernecky’s sister had children while he was incarcerated. Under this condition, seeing them — at his mother’s house, at a holiday, at any gathering where they might be present — requires him to obtain Probation’s or the Court’s approval in advance, every time, for as long as the condition remains in effect. The Second Circuit has already recognized how untenable that structure is for ordinary family life. Confronting a nearly identical restriction, the court observed that it “would apply with full force to all routine family interaction — for example, Thanksgiving dinners or seders or christenings.” *United States v. Jenkins*, 854 F.3d 181, 194 (2d Cir. 2017). The same is true here. And where the visit is unannounced — his sister arriving at their mother’s house with her children while Mr. Bernecky happens to be there for coffee — there is no opportunity to seek approval before the contact occurs at all; the condition supplies no mechanism for that scenario except placing him in technical violation the moment he does not immediately leave. Not a single allegation, or even an

insinuation, has ever surfaced that Mr. Bernecky is a danger to a minor family member.

An approval mechanism does not cure this problem merely because it exists on paper. The Tenth Circuit rejected exactly that argument when the government raised it against a materially identical restriction. There, the government argued that a condition restricting a defendant's contact with his own son and other minor male relatives was not overly broad because "it still allows Defendant to have contact with his family with the advance permission of his probation officer." *United States v. Lonjose*, 663 F.3d 1292, 1296 (10th Cir. 2011). The court disagreed: "Nor does it lessen the interference that Defendant is entitled to contact with his son if he gets advance permission from his probation officer. While these provisions may allow Defendant to have some contact with his son, there is still an impermissible infringement of Defendant's ability to freely associate with his family." *Id.* at 1303. An approval requirement is not a substitute for an individualized finding that the restriction is actually necessary — and, as in *Lonjose* itself, no such finding as to family contact has ever been made in this case. *Lonjose* arose under the same statute Mr. Bernecky invokes here, § 3583(e)(2): the restriction there was likewise added after the fact, and the Tenth Circuit reversed its imposition and remanded for the condition to be narrowed so that it "reasonably relates to Defendant's offense." *Id.*

The right to maintain relationships with extended family, not only one's own children, is constitutionally protected, and this condition's illusory carve-out sits directly on top of that right. In striking down a housing ordinance that limited occupancy to members of a single nuclear family, the Supreme Court held that "what a reasonable and sensitive judgment must" recognize is that "certain interests require particularly careful scrutiny of the state needs asserted to justify their abridgment" — a standard the Court adopted from Justice Harlan's dissent in *Poe v. Ullman*, 367

U.S. 497, 542-43 (1961) (Harlan, J., dissenting), and applied to protect a grandmother’s right to live with her grandson against a law that assumed, as this condition does, that a person’s family is limited to the narrower category of his own children. *Moore v. City of East Cleveland*, 431 U.S. 494, 499, 503 (1977) (plurality opinion). Nothing in *Moore*’s reasoning confines “family” to that narrower category, and this condition should not either. The interest runs in both directions here. Mr. Bernecky’s parents and his sister have their own liberty interest in their relationships with their grandchildren and children, respectively — “perhaps the oldest of the fundamental liberty interests recognized by this Court.” *Troxel v. Granville*, 530 U.S. 57, 65 (2000). That interest belongs to them, not to Mr. Bernecky directly, but a condition that makes it impossible for him to be present at an ordinary gathering of his own family, without advance clearance from Probation, burdens their interest as surely as his own.

Courts have made clear that this protection is not limited to a defendant’s own children, and the closest case on point makes exactly that point about grandchildren. In *United States v. Weiskopf*, 841 F. App’x 304 (2d Cir. 2021) (summary order) — a case arising from this same district — the Second Circuit remanded a condition barring deliberate contact with “any child under 18 years of age, excluding his biological or adopted children, unless approved by the probation officer or by the Court,” materially the same language as Special Condition (c), as applied to the defendant’s own grandchildren, because the district court had made no individualized finding as to them and the defendant had not been “alleged to have posed a danger to his grandchildren.” That is Mr. Bernecky’s situation exactly, one generation removed.

The Second Circuit applies exactly this heightened scrutiny more generally to any condition of supervised release that touches familial association. Where a condition implicates a fundamental



liberty interest, the sentencing court must “carefully examine” it and find that it involves “no greater deprivation of liberty than is reasonably necessary” — and, because the interest here is fundamental, that it is “narrowly tailored to serve a compelling government interest.” *United States v. Myers*, 426 F.3d 117, 124-26 (2d Cir. 2005) (quoting *Troxel*, 530 U.S. at 65-66, and vacating a special condition restricting a defendant’s contact with his own son because the record did not establish whether the condition was meant to protect the defendant’s son specifically or minors generally, and no finding addressed the question either way). And a district court’s failure to explain why a no-contact-with-minors condition is necessary is error “unless obvious from the record.” *United States v. Bleau*, 930 F.3d 35, 43 (2d Cir. 2019). Bleau’s own facts are instructive: the Second Circuit found plain error and remanded where the defendant, like Mr. Bernecky, had not been “alleged to have engaged in, or attempted to engage in, inappropriate contact with minors” — there, even while he was living in his sister and brother-in-law’s house and had previously worked at an elementary school. *Id.* On remand, the district court gave reasons tied to Bleau’s own circumstances, and the condition was affirmed a second time — but only after that individualized assessment actually happened. *United States v. Bleau*, No. 19-3931-cr (2d Cir. Feb. 4, 2021) (summary order). No comparable assessment addressing family contact has ever been made in this case, at sentencing or since.

**Requested relief as to Part A:** an order modifying Special Condition (c) to add “or minor family members” to its existing carve-out, so that the condition excludes contact with Mr. Bernecky’s biological or adopted children, or minor family members, from the “deliberate contact” prohibition, without requiring case-by-case advance approval from Probation or the Court.

**B. The condition should also make clear that it does not reach the incidental contact that is**

**unavoidable in ordinary public life.**

Mr. Bernecky’s concern here is not that “deliberate contact” is genuinely ambiguous in the abstract. As a matter of appellate law, it likely is not: on the second appeal in *Bleau*, the Second Circuit held that a condition barring “direct contact” with minors “without pre-approval” was “not unduly restrictive” in part because the defendant “is permitted unapproved incidental contact with minors during daily activities in public places” — expressly distinguishing that structure from the condition considered and rejected in *Jenkins*, which “banned both direct and indirect contact with minors unless supervised by a person approved by the Probation Department,” with no such carve-out. *United States v. Bleau*, No. 19-3931-cr (2d Cir. Feb. 4, 2021) (summary order) (distinguishing *Jenkins*, 854 F.3d 181, 194-95 (2d Cir. 2017)). Other circuits read comparable language the same way: “associational restrictions are usually read to exclude incidental encounters.” *United States v. DaSilva*, 844 F.3d 8, 14 (1st Cir. 2016) (quoting *United States v. Pabon*, 819 F.3d 26, 35 (1st Cir. 2016)). Special Condition (c) uses the same qualifier — “deliberate” — and if this case ever turned on how a court of appeals would read that word, Mr. Bernecky would likely already have his answer.

But that is exactly the problem: it is not the Second Circuit that will read this condition for the next ten years, it is Probation, and Mr. Bernecky already has direct evidence of how Probation reads conditions like this one once they actually apply to him. As Part I above describes, Probation gave two different, shifting, capability-contingent answers about how far Special Condition (a) reaches an employer’s own systems — neither one written down, both broader than the condition’s text plainly requires. And as Part C below describes, Mr. Bernecky was separately told that Special Condition (c) itself would bar him from working anywhere that hires or serves anyone under 18 —

a result the procedural posture of this case does not permit: because no § 5F1.5 analysis was ever conducted, no condition in this Judgment can be read to reach his employment. Having already watched Probation read these conditions more broadly than their own words require, Mr. Bernecky has no reason to assume “deliberate contact” will be read narrowly in his case just because the Second Circuit has said so in someone else’s.

The word the condition actually uses is worth taking seriously on its own terms. As an adjective, “deliberate” means “characterized by or resulting from careful and thorough consideration” or “characterized by awareness of the consequences.” *Deliberate*, Merriam-Webster.com Dictionary, Merriam-Webster, <https://www.merriam-webster.com/dictionary/deliberate> (accessed July 16, 2026). Neither sense requires bad purpose or any purpose beyond the act itself — Merriam-Webster’s own account of the word’s closest synonyms confirms that “deliberate implies full consciousness of the nature of one’s act and its consequences,” a standard distinct from “voluntary” (free of external compulsion) or “intentional” (aware of an end to be achieved). *Id.* Taken to that natural end, “deliberate” contact with a child could cover: asking a teenage cashier to ring up a sandwich, telling a teenage grocery bagger to put the bread on top of the bag, or telling a child to stop before he steps into oncoming traffic. Each of those is, under the dictionary definition, deliberate — Mr. Bernecky is fully conscious, in the moment, that he is choosing to speak to a minor — and each is exactly the kind of ordinary, and in the last example urgent, interaction no one could seriously believe this condition was written to prohibit. Mr. Bernecky asks the Court to say so directly, rather than leave him to guess whether Probation will read “deliberate” the way the Second Circuit already has, or the way it has already read two other conditions in this same Judgment.

**Requested relief as to Part B:** an order clarifying that “deliberate contact” does not include

incidental, unplanned encounters with minors in the ordinary course of public life.

**C. The condition should also be clarified, before supervision begins, to impose no restriction on Mr. Bernecky's choice of occupation.**

The point here is simple. The sentencing court did not impose an occupational restriction and was never asked to: nothing in the record shows any request for, or finding under, U.S.S.G. § 5F1.5(a), the guideline that governs whenever a condition restricts a defendant's choice of employment, for the same reason set out in Part I.A above — the sentencing court's own intention is paramount, and the record it left contains no occupational restriction and no § 5F1.5 finding to support one. That procedural posture leads to one conclusion — Special Condition (c) does not restrict Mr. Bernecky's choice of employer or occupation. But because Mr. Bernecky was separately told, in the course of the same job search described in Part I above, that this condition would preclude him from working anywhere that hires or serves anyone under 18, he asks that this be duly clarified now, before it costs him another job the way a related dispute already nearly did. Mr. Bernecky has never been alleged to have used his employment, at this job or any other, as a means of gaining access to a minor or as a catalyst for any offense, let alone a sex offense; his conduct occurred entirely on devices in his own home, with no occupational element at all.

There is also a forward-looking problem with this reading that has nothing to do with anything Mr. Bernecky himself would do. At any moment, for any reason, Mr. Bernecky's employer could lawfully hire a sixteen- or seventeen-year-old for any position in the company — federal and New York law both permit it, with no restriction tied to seniority or role. 29 C.F.R. pt. 570, subpt. E (allowing employers to employ minors sixteen or seventeen years of age outside a defined list of hazardous occupations); N.Y. Lab. Law § 132 (same). Under Probation's stated reading of

this condition, that single lawful hiring decision — made by someone else, with no notice to Mr. Bernecky and no way for him to prevent it — would place him in jeopardy of violating his supervision, through no act of his own, at the very moment Standard Condition 7 separately requires him to keep working. A defendant cannot be made to answer for another party's lawful choice, and a condition that puts his continued liberty at the mercy of it is the opposite of promoting the rehabilitation and successful reintegration supervised release is meant to achieve.

**Requested relief as to Part C:** a clarification that Special Condition (c) does not apply to Mr. Bernecky's employment in any respect.

#### **IV. Special Conditions (d) and (i) — Financial Monitoring and Disclosure**

Special Condition (d) will require Mr. Bernecky to give Probation access to “any requested personal and/or business financial information” to monitor his “compliance with not buying or subscribing to online services that provide child pornography.” Special Condition (i) separately requires the same open-ended access, tied instead to “the collection of any unpaid fine or restitution.” Each condition gives Probation more than its own stated purpose could ever call for, in a different way. Each is addressed in turn below.

No one has ever alleged that Mr. Bernecky purchased child pornography; his conviction is for possession, and nothing in the record suggests his access to it involved payment of any kind. A condition aimed at detecting a purchase has nothing to detect in a record with no purchase in it. But Special Condition (d) does not need “any requested personal and/or business financial information” to accomplish what it says it exists to do. If the concern is whether Mr. Bernecky paid for access to child pornography, the records capable of showing that are a specific, identifiable

set — credit and debit card statements, PayPal or other electronic fintech transaction records, and cryptocurrency wallet or exchange records — not, for instance, a brokerage account statement, a 401(k) or other retirement account, or any other financial record incapable of showing a payment to a child-pornography vendor. Nor does detecting that kind of payment require anything beyond a vendor’s own name; the condition’s stated purpose is served in full once Mr. Bernecky discloses to whom a payment was made, without any need for the amount, the account number, or any other financial detail beyond that.

*United States v. Jenkins* does not map onto this problem perfectly, but its underlying logic still applies. There, the Second Circuit struck down a condition that forbade a child-pornography defendant from incurring any credit card charge or opening any line of credit without the probation officer’s prior approval, holding that “[n]othing in the record suggests these restrictions on Jenkins’s use of credit cards are ‘reasonably necessary’... to protect the public or to deter [him] from continuing to engage in the conduct for which he was convicted — possession of child pornography.” 854 F.3d 181, 194 (2d Cir. 2017) (quoting 18 U.S.C. § 3563(b)(5)). The court did not mince words about why: “Why Jenkins should be prohibited from buying a drink on an airplane or taking an Uber ride or making a purchase on Amazon unless the transaction is pre-approved by a probation officer cannot be divined from the record we are reviewing.” *Id.* Special Condition (d) is not a prior-approval requirement of that kind — it requires disclosure, not permission, and Mr. Bernecky does not treat the two as equivalent. But Jenkins’s point survives that distinction: a condition responding to a possession offense with no financial element of its own cannot reach further than what that offense actually gives Probation reason to look for, whether the mechanism is advance approval or after-the-fact disclosure.

Mr. Bernecky raises this now, before supervision begins, so that Special Condition (d)’s proper scope is settled rather than discovered only after an overbroad request has already been made. Probation has not yet made any request under this condition at all, and Mr. Bernecky recognizes the Court may prefer to await an actual request before ruling on the condition’s outer limits.<sup>1</sup>

Special Condition (i) presents a different problem. It ties Probation’s access to Mr. Bernecky’s finances, and its control over his assets, to “the collection of any unpaid fine or restitution.” Mr. Bernecky believes the \$500 restitution has already been paid in full. If the record confirms that, the condition has nothing left to collect, and *Lussier* confirms no separate showing of changed circumstances is needed to vacate a condition whose entire stated purpose has already been fulfilled. 104 F.3d at 36. The guideline provision Special Condition (i) implements says the same thing in its own terms: a financial-disclosure condition of this kind is authorized only “if the court imposes an order of restitution, forfeiture, or notice to victims, or orders the defendant to pay a fine,” U.S.S.G. § 5D1.3(d)(3) (2025), and the guideline’s companion debt-obligation condition lifts automatically “unless the defendant is in compliance with the payment schedule.” *Id.* § 5D1.3(d)(2). Full payment removes the guideline’s own stated trigger for either condition. The Sentencing Commission’s most recent amendments confirm the point further: courts must now “conduct an individualized assessment to determine what, if any” discretionary conditions remain warranted, *id.* § 5D1.3(b)(1), because, in the Commission’s own words, conditions imposed “at original sentencing, often years before the defendant begins supervision” can become conditions that are “no longer appropriate after the defendant’s release” — exactly the change Mr. Bernecky asks the Court to recognize here.

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<sup>1</sup>Mr. Bernecky asserts, upon information and belief, that any records beyond credit and debit card statements, PayPal or comparable electronic fintech transaction records, and cryptocurrency wallet or exchange records — and, within those categories, anything beyond the identity of the vendor paid — would exceed what Special Condition (d) can reasonably require to accomplish its own stated purpose. He reserves the right to bring an as-applied objection should Probation ever request records beyond that scope.

*Id.* § 5D1.4(a).

**Requested relief as to Part IV:** an order (1) clarifying that Special Condition (d) requires disclosure only of the vendor’s name for transactions made by credit card, debit card, PayPal or comparable electronic payment service, or cryptocurrency, and does not extend to the amount of any transaction, any account number, or any other financial record — including brokerage, investment, or retirement account records — incapable of showing a payment to a child-pornography vendor; and (2) vacating Special Condition (i) upon confirmation that the \$500 restitution obligation has been paid in full.

#### **V. Special Condition (e) — Sex Offender Registration and Presentence Report Disclosure**

Special Condition (e) is unnecessarily duplicative in part, and falls short of what the law requires before a presentence report may actually be disclosed to a third party. Its registration language repeats an obligation Mandatory Condition 6 already imposes under 34 U.S.C. § 20901 *et seq.*, and does no independent work. Its disclosure language authorizes Probation to give Mr. Bernecky’s presentence report (“the Report”) to the New York State Board of Examiners of Sex Offenders, and further disclosure “to the county court and to the parties involved in the determination of the defendant’s final classification level” — a blanket grant made once, at sentencing, rather than the case-specific showing the law requires at the time disclosure is actually sought. Mr. Bernecky asks the Court to strike the condition in full.

This is not a hypothetical problem. Mr. Bernecky has just received notice that his risk-level classification proceeding under the New York Sex Offender Registration Act is approaching, and the plain language of Special Condition (e) authorizes disclosure of the Report to the Board, the county court, and the parties to that proceeding in connection with that determination. This is the



specific disclosure the condition names, to the specific body the condition names, in a proceeding now actually before the state, and it requires resolution before, not after, that disclosure happens. Mr. Bernecky has separately moved this Court on an emergency basis to preserve the status quo while this motion is decided.

In *United States v. Charmer Indus., Inc.*, the Second Circuit considered whether a presentence report prepared for a federal criminal defendant could be disclosed to a state Attorney General for use in a separate state licensing proceeding. 711 F.2d 1164, 1168 (2d Cir. 1983). The district court had approved that disclosure based on the Probation Service's own view, as an agency with "administrative expertise," that release was appropriate — deference the Second Circuit rejected outright, reversing the denial of an injunction and ordering the report returned. *Id.* at 1168-69, 1176-77. A presentence report, the Second Circuit held, "is a court document" that remains under the sentencing court's control and "is to be used by nonjudicial federal agencies and others only with the permission of the court" — permission that depends on "the most compelling reasons," shown through a "particularized showing" made at the time disclosure is actually sought, a standard "approaching that" required for the release of grand jury materials. *Id.* at 1169-70, 1174-75. Special Condition (e) inverts that sequence entirely: rather than requiring the compelling, particularized showing *Charmer Industries* demands at the moment disclosure is sought, it supplies blanket, standing permission years in advance, before any classification proceeding existed, addressed to no specific request, and resting on no finding about this proceeding, this Board, or these parties at all. Probation's own view that disclosure is authorized is precisely the kind of administrative self-authorization *Charmer Industries* refused to defer to. If a presentence report cannot be released to a single state Attorney General for a single licensing matter without an individualized showing

made when disclosure is actually requested, it cannot be released to a state Board, a county court, and an open-ended set of “parties involved” in a classification proceeding on the strength of a permission slip signed at sentencing.

Every case applying this standard, including *Charmer Industries* itself, involved an actual request: a party came to the court and asked for disclosure, and the court evaluated whether that party had shown a compelling, particularized need. *See, e.g., United States v. Iqbal*, 684 F.3d 507, 509-10 (5th Cir. 2012) (the Department of Homeland Security “sought” the district court’s permission, and received only a redacted report confined to one proceeding); *United States v. Gomez*, 323 F.3d 1305, 1307 (11th Cir. 2003) (state prosecutors “requested” disclosure of a single, narrow portion of the report after in camera review). This is not a rule unique to the Second Circuit: as recently as 2021, the First Circuit surveyed the courts of appeals and found the identical compelling-need, particularized-showing standard applied across the Second, Third, Fourth, Seventh, Eighth, Ninth, and Eleventh Circuits alike. *United States v. Grullon*, 996 F.3d 21, 41 n.17 (1st Cir. 2021) (collecting *Charmer*, 711 F.2d at 1175, and other circuits’ cases). Special Condition (e) has no request, from anyone, for this Court to evaluate. It authorizes disclosure before the Board, the county court, or any party to a classification proceeding has asked for anything, on the theory that Probation may simply volunteer the Report once a proceeding arises. Nothing in *Charmer Industries*, *Iqbal*, *Gomez*, or any case this motion has located contemplates a court granting disclosure that nobody has requested; the entire compelling-need framework presupposes a request for the Court to weigh against confidentiality, and Special Condition (e) dispenses with the request altogether. Upon information and belief — based on Mr. Bernecky’s own exposure, during his incarceration, to the judgments of numerous other individuals convicted of similar offenses from across New York State

— this advance disclosure authorization appears unique to this District; he is aware of no comparable provision volunteering a presentence report to the Board of Examiners in the Northern, Eastern, or Southern Districts of New York.

Special Condition (e) also does nothing to confine the Report once it leaves this Court’s hands, and *Charmer Industries* treated that omission as independently disqualifying. The relief the Second Circuit ordered was not simply a case-specific showing before release; it was an injunction requiring the recipient to return the report and all copies and extracts of it, and prohibiting any further publication or use of any portion not already public. *Id.* at 1176-77. Special Condition (e) contains none of those safeguards. It does not prohibit the Board, the county court, or any of the open-ended “parties involved” from further disseminating the Report beyond their own use. It does not require that any of them be told what *Charmer Industries* itself took pains to explain, and a more recent circuit has since said even more plainly: a presentence report “may well contain hearsay statements that are not subject to cross-examination” and information “bearing no relationship” to the offense, *Charmer*, 711 F.2d at 1171, and “[c]ontested facts frequently remain in the report even if the court chooses to disregard them for sentencing or expressly finds them inaccurate.” *In re Morning Song Bird Food Litig.*, 831 F.3d 765, 772 (6th Cir. 2016). A recipient using the Report to help decide Mr. Bernecky’s risk level has no warning of any of this. Nor does Special Condition (e) require that the Report be returned, or otherwise kept confidential, once whatever proceeding sought it is over — even though the Judiciary’s own governing policy requires exactly that safeguard when a presentence report is redisclosed by the Bureau of Prisons, mandating that the document “be returned to the Federal Bureau of Prisons or destroyed” and barring any further redisclosure “without the consent of the sentencing judge.” Guide to Judiciary Policy, Vol. 8D, § 510(e). A disclosure authorization

missing all three of those protections invites exactly the unconfined circulation of a presentence report *Charmer Industries* reversed a lower court for permitting.

**Requested relief as to Part V:** an order striking Special Condition (e) in full, without foreclosing a properly noticed, case-specific disclosure request — supported by the particularized showing *Charmer Industries* requires, and conditioned on (i) a prohibition on further dissemination beyond the recipient’s own use in the classification proceeding, (ii) a disclaimer that the Report’s contents are not necessarily accurate, true, or uncontested, and (iii) an order requiring return of the Report and all copies once that proceeding concludes — should one ever actually be made.

## **VI. Special Condition (g) — Polygraph and Computerized Voice Stress Analyzer Testing**

Special Condition (g) states:

The defendant shall submit to polygraph, computerized voice stress analyzer or other such testing, not to exceed twice in a calendar year, and an additional two re-tests per year, as needed. That testing may include examinations using a polygraph, computerized voice stress analyzer, or other similar device to obtain information necessary for supervision, case monitoring, and treatment. The defendant shall answer the questions posed during the examination, subject to the defendant’s right to challenge in a court of law the use of such statements as violations of the defendant’s Fifth Amendment rights. In this regard, the defendant shall be deemed not to have waived the defendant’s Fifth Amendment rights by making any such statements. The results of any polygraph pre-tests and polygraph examinations may be disclosed to the US Probation office and the Court, but shall not be further disclosed without a court order. The defendant is

required to contribute to the cost of services rendered.

Mr. Bernecky does not object to submitting to polygraph or CVSA testing, and this motion does not ask the Court to strike Special Condition (g), to relieve him of that testing, or to disturb the twice-a-year schedule and its permitted re-tests. What he objects to is being commanded to *answer* any specific question at all. He asks the Court to let him have the actual benefit the Fifth Amendment provides — the right not to answer an incriminating question in the moment it is asked — not merely a later opportunity to argue that an answer he was already forced to give should not have been.

The Court should strike, in full and without replacement, three sentences from that paragraph: “The defendant shall answer the questions posed during the examination, subject to the defendant’s right to challenge in a court of law the use of such statements as violations of the defendant’s Fifth Amendment rights”; “In this regard, the defendant shall be deemed not to have waived the defendant’s Fifth Amendment rights by making any such statements”; and “The results of any polygraph pre-tests and polygraph examinations may be disclosed to the US Probation office and the Court, but shall not be further disclosed without a court order.” The third sentence is surplusage once the first two are gone: it exists only to govern what becomes of statements Mr. Bernecky was compelled to give, and once he is no longer compelled to give any, question by question, there is nothing left for a court-order-gated disclosure rule to protect. Everything else in the condition remains exactly as written — the testing requirement itself, which already commands Mr. Bernecky to *submit to* polygraph, CVSA, or similar testing. Once those three sentences are gone, the condition asks nothing more of Mr. Bernecky than what its own first sentence already asks: that he *submit to* testing. It no longer instructs him to answer any particular question, and because it no longer does,

it needs no savings clause — and no downstream disclosure rule — to protect a right that a bare submission requirement never put at risk to begin with.

The Second Circuit has never decided whether a savings clause of the kind Special Condition (g) currently pairs with its answer command is sufficient. Its one polygraph decision, *United States v. Johnson*, upheld language close enough to Special Condition (g)’s own — an answer requirement paired with a right to challenge the later use of the answer — that the resemblance cannot be coincidence. 446 F.3d 272 (2d Cir. 2006). But the theory Johnson actually presented was narrower than the one Mr. Bernecky raises here: Johnson argued that, absent formal use and derivative-use immunity, he faced an unconstitutional choice between confessing to past conduct and standing in violation of his conditions for remaining silent, a *Kastigar*-style immunity theory built around his own facts. *Id.* Johnson never asked, and the panel never answered, whether requiring an answer at all — backed only by a later right to litigate whether the answer’s use was proper — is itself the compulsion the Fifth Amendment forbids. That is a categorically different question from the one Johnson decided, and it remains open in this Circuit.

The Tenth Circuit appears to be the only circuit that has actually answered it, first in *United States v. Von Behren*, 822 F.3d 1139 (10th Cir. 2016), and then refined and applied in *United States v. Richards*, 958 F.3d 961 (10th Cir. 2020), and *United States v. McDonald*, No. 1:11-CR-01075-MV-1, 2026 U.S. Dist. LEXIS 681 (D.N.M. Jan. 6, 2026). Mr. Bernecky respectfully asks this Court to apply those standards here.

*Minnesota v. Murphy* supplies the framework those decisions apply: compulsion exists whenever the government “either expressly or by implication, asserts that invocation of the privilege” would lead to revocation or another substantial penalty. 465 U.S. 420, 434-36 (1984). Until *Von Behren*,

the question whether requiring an answer to a supervised-release polygraph question, backed by the threat of revocation for declining to give one, satisfies that “classic penalty situation” appears to have gone unaddressed in this specific setting — polygraph and CVSA testing tied to sex-offender supervision. *Von Behren* answered it: “a threat to revoke one’s probation for properly invoking his Fifth Amendment privilege is the type of compulsion the state may not constitutionally impose.” 822 F.3d at 1150. Special Condition (g) does not need an officer standing in the room threatening revocation to create that same compulsion; Murphy’s own standard does not require one, since compulsion exists where the government asserts the penalty “either expressly or *by implication*.” 465 U.S. at 435 (emphasis added). This condition builds that implication into its own grammar. For decades, the Supreme Court has instructed that a witness invokes the privilege by doing exactly one thing: declining to answer the question asked, with nothing more required at that moment to protect himself. *See Hoffman v. United States*, 341 U.S. 479, 486 (1951) (a witness need only decline to answer, on the stated ground that a responsive answer might be incriminating, to invoke the privilege in the first instance — its validity, if challenged, is for the court to decide afterward). Special Condition (g)’s “shall answer” commands the opposite of that decades-old instruction: it tells Mr. Bernecky, in a condition backed by the threat of revocation for any violation, that the one act the Constitution has always told him is sufficient to protect himself — simply declining to answer — is itself a violation of his supervision. That is not an extension of Murphy’s “classic penalty situation” by analogy; it is that situation, implied directly from the condition’s own command rather than from any officer’s separate statement — the identical absence of room to decline that made the threatened termination and remand in *Von Behren* unconstitutional.

Mr. Bernecky’s request is not exotic; it already describes how the agency responsible for adminis-

tering supervision handles this exact scenario everywhere else. The Administrative Office’s own guidance to probation officers directs that “[i]f the person on supervision refuses to answer a specific question on the grounds that it is self-incriminating, the officer should not compel (e.g., through threat of revocation) the person to answer the question,” and that where “there is uncertainty about whether the invocation of the privilege against self-incrimination is valid . . . the probation officer should refer the matter to the court to make this determination.” Guide to Judiciary Policy, Vol. 8E, § 250(b). That is precisely the structure Mr. Bernecky asks the Court to make explicit in Special Condition (g) itself: invoke question by question, with any dispute about a specific invocation’s validity referred to this Court, rather than resolved unilaterally by an officer in the room or deferred to a later proceeding reviewing an answer Mr. Bernecky has already been forced to give. Special Condition (g)’s “shall answer” text does not merely omit this safeguard — it contradicts the policy that is supposed to guide the very officer who will administer it.

The reason “answer now, argue about the use of the answer later” cannot substitute for the Fifth Amendment’s actual protection is not that a future prosecution against Mr. Bernecky is speculative. Whether prosecution is ever likely is beside the point: once a person has a valid basis to invoke the privilege, the government may not compel the answer at all, and it does not get to compel the answer now on the promise that a court will sort out later whether it should have been permitted. The incrimination threshold that triggers this rule is deliberately low: a statement is incriminating if it provides only “a lead or a link in the chain of evidence that could lead to prosecution.” *Von Behren*, 822 F.3d at 1144 (quoting *Maness v. Meyers*, 419 U.S. 449, 461 (1975)); accord *United States v. McDonald*, No. 1:11-CR-01075-MV-1, 2026 U.S. Dist. LEXIS 681, at \_\_\_\_ (*D.N.M. Jan. 6, 2026*) (quoting the identical “lead or link” standard from *Richards*, 958 F.3d at 967). That threshold does



*not wait for an actual investigation to exist. As McDonald\* explains, “[t]hat is not to say that an active investigation is necessary to make an answer incriminating. Answers that could provide a ‘lead’ or a ‘link’ in potential future criminal investigations are also incriminating.” McDonald, 2026 U.S. Dist. LEXIS 681, at \*\_\_\_\_. Special Condition (g)’s structure gets the sequence backward. It defers the entire inquiry to a later proceeding examining a statement Mr. Bernecky has already given, when the real constitutional question — whether the answer should have been compelled at all — has to be asked before the answer is given, not after. The harm the privilege exists to prevent, providing a lead or a link the government did not otherwise have, happens the moment the answer is spoken; a later ruling that the statement was inadmissible does not undo that disclosure. It cannot make an investigator un-know what the answer told him, or stop him from pursuing where it leads. “Answer first, litigate later” is not a diminished version of the Fifth Amendment’s protection. It is the absence of that protection, dressed up as a savings clause.*

*Richards and McDonald confirm this diagnosis, and fairness requires disclosing both honestly: each rejected the facial challenge before it. In Richards, the Tenth Circuit upheld a condition requiring the defendant “to submit to periodic polygraph testing,” because nothing in the record showed the government had threatened, expressly or by implication, to seek revocation for a valid invocation of the privilege. 958 F.3d at 967. Applying constitutional avoidance, the court read the condition to leave the defendant “free to legitimately exercise his Fifth Amendment right without facing the risk that a valid assertion of his privilege . . . will result in revocation.” Id. at 968. Senior United States District Judge Martha Vazquez of the District of New Mexico reached the identical result on the identical reasoning, denying a facial challenge to a condition requiring the defendant to “submit to clinical polygraph examinations,” because “neither the Government nor any other entity ha[d]*

threatened, explicitly or implicitly, to revoke Mr. McDonald's supervised release if he refuses to answer a question during a polygraph examination on valid Fifth Amendment grounds." *McDonald*, 2026 U.S. Dist. LEXIS 681, at \*\_\_\_\_. Judge Vazquez went further, advising defendants generally that they "should err on the side of asserting the privilege even where the question does not directly ask about the commission of a crime." *Id.* at \*\_\_\_\_.

Neither case helps the government here, because neither condition was written the way Special Condition (g) is written. Both courts could reach their result only because the operative verb in each condition was *submit to* — language about attendance and participation in an examination, not language commanding an *answer*. *McDonald*, 2026 U.S. Dist. LEXIS 681, at \_\_\_\_ ("Mr. McDonald may be required to 'submit to clinical polygraph examinations,' but that does not necessarily translate to 'truthfully answer even incriminating questions' "). *Special Condition (g) closes that gap by its own terms: it does not tell Mr. Bernecky to submit to\* an examination, it tells him to answer the questions posed during one, and there is no reading of "shall answer" that leaves the room to decline that "submit to" leaves open. Constitutional avoidance lets a court choose between readings the text can bear; it cannot manufacture a reading the text has already foreclosed. Judge Vazquez recognized as much, emphasizing that a defendant remains free to move "to modify [his] conditions to include language that better strikes a balance" between his constitutional rights and Probation's supervisory interest — precisely the motion Mr. Bernecky now brings. McDonald*, 2026 U.S. Dist. LEXIS 681, at \*\_\_\_\_.

The fix is the one stated at the outset: strike, in full, the two sentences that command an answer and defer the entire privilege inquiry to a later proceeding, together with the disclosure sentence that exists only to govern the fallout of a compelled answer, and propose no replacement for any

of the three. What remains — a condition that requires Mr. Bernecky to *submit to* testing, without commanding an answer to any specific question — is exactly the structure *Richards* and *McDonald* both held preserves the in-the-moment right to invoke the privilege.

**Requested relief as to Part VI:** an order striking, in full and without replacement, the condition’s compelled-answer sentence, its accompanying non-waiver sentence, and the now-surplus disclosure sentence, leaving Mr. Bernecky’s obligation to *submit to* polygraph and CVSA testing otherwise intact.

## **VII. Special Condition (h) — Mental Health Treatment and Alcohol Abstinence**

Once supervision begins, Special Condition (h) will require participation in mental health treatment and, “while in treatment or taking psychotropic medication,” complete abstinence from alcohol. The provider-rule and violation-exposure problem common to any court-ordered treatment program — addressed in Part II, which applies with equal force to the mental health provider selected under this condition — is not repeated here. This Part addresses a separate problem specific to Special Condition (h): the automatic, blanket alcohol-abstinence requirement itself.

Alcohol abstinence should follow an actual physician’s determination, not apply automatically regardless of one. Mr. Bernecky has no objection to treatment itself. His objection is to a blanket abstinence rule that will apply whether or not any physician has ever said a specific medication he takes interacts with alcohol. This Circuit has already vacated a comparable blanket restriction for lacking the individualized nexus § 3583(d) demands. *United States v. Betts*, 886 F.3d 198 (2d Cir. 2018) (striking a total alcohol ban as “not reasonably related to any of the factors outlined in Section 5D1.3(b)” where nothing in the record tied the offense, any violation, or any history to alcohol).

It has since applied the same rule to a nearly identical “abstain from alcohol during treatment” clause, rejecting the government’s position that the clause could simply be reimposed without any individualized look. *See United States v. Rodriguez*, No. 22-1820-cr (2d Cir. Dec. 7, 2023) (summary order). The same gap exists here: nothing in this record ties alcohol to Mr. Bernecky’s offense or his criminal history at all. His offense conduct involved images on a device, not alcohol, and no incident in his record has ever involved alcohol as a factor.

The clause’s own wording makes this worse: it triggers on “treatment **or** medication,” meaning talk therapy alone — with no medication at all — is enough to require abstinence, even though no interaction risk could exist without a medication in the picture. Even within the medication branch, treating “psychotropic medication” as one uniform risk category ignores that alcohol-interaction risk differs sharply across drug classes. This precise clause, word for word, is this district’s standard template for mental-health-treatment conditions, adopted after this district’s own remand in *Browder* — not a finding made specifically about Mr. Bernecky.

The fix: the alcohol-abstinence requirement should apply only while, and only because, a treating physician has determined alcohol is contraindicated for a specific medication or treatment Mr. Bernecky is actually receiving.

**Requested relief as to Part VII:** an order amending Special Condition (h) so that the alcohol-abstinence requirement applies only upon, and only for as long as, a treating physician determines that alcohol is contraindicated for a specific medication or treatment Mr. Bernecky is actually receiving; the provider-rule and violation-exposure protections requested as to Part II apply to this condition as well, as set out there.

### **VIII. Standard Conditions 5 and 8 — No Defined Standard for “Approved” or “Permission”**

Standard Condition 5 will require Mr. Bernecky to live only at a place “approved by the probation officer.” Standard Condition 8 will forbid him from communicating with anyone he knows has a felony conviction without the probation officer’s advance permission. Mr. Bernecky knows, from the conditions’ own text, that permission is required in each circumstance. What neither condition says is what will actually earn it — what a probation officer is supposed to look for, what Mr. Bernecky would need to show or do, or what standard separates a place or a person that gets approved from one that does not.

That gap is a real problem, not an abstract one. Because nothing defines what satisfies either standard, a probation officer is free to condition approval on anything at all — compliance with requests that have nothing to do with risk or need, or simply whatever the officer decides, in the moment, to require. Written this way, Standard Conditions 5 and 8 turn Mr. Bernecky’s liberty, his choice of associations, his property interest in where he lives, and even his own speech into a carrot: something to be granted or withheld at will, rather than something governed by any standard he could point to and say he had met.

The vagueness principle applies directly: “[a] condition is too vague if it requires a reasonable person to speculate as to its meaning.” *United States v. Reeves*, 591 F.3d 77, 80-81 (2d Cir. 2010). Knowing that permission is required does Mr. Bernecky no good if nothing tells him, or anyone else, what earns it; he is left to speculate about the standard itself, not merely its application. That is also a delegation problem, not merely a notice problem: a district court “may not delegate to the Probation Department decisionmaking authority which would make a defendant’s liberty itself contingent on a probation officer’s exercise of discretion.” *United States v. Kunz*, 68 F.4th 748,

762-63 (2d Cir. 2023) (quoting *United States v. Matta*, 777 F.3d 116, 122 (2d Cir. 2015)). Both conditions do exactly that: whether Mr. Bernecky may keep his home, or speak to another person, turns entirely on a probation officer’s unstated exercise of discretion, with no standard supplied by this Court, or by Probation itself, to constrain it.

Nor is a standard hiding somewhere else in the record. The only articulated basis Probation has ever offered for a residence decision is that “the probation officer assesses whether the change is appropriate to meet the defendant’s risk and needs and whether it poses any risk to the defendant or to others” — a sentence broad enough to justify any outcome and narrow enough to guide none. U.S. Courts, *Overview of Probation and Supervised Release Conditions*, ch. 2, § V (July 2024). Probation plainly knows how to write an actual standard when it wants one: its own search-and-seizure guidelines require a written plan, supervisor approval, and a defined reasonable-suspicion showing before a search of Mr. Bernecky’s own home may occur. Guide to Judiciary Policy, Vol. 8E, Appx. 3A. No comparable structure exists for a decision that can put him out of that home entirely, or bar him from speaking to another person at all.

Even given all this, Mr. Bernecky does not ask the Court to take Probation out of the business of approving a residence or permitting contact with a known felon; those are legitimate supervisory tools, and he does not dispute that Probation should have some role in exercising them. He asks only that the role be governed by a standard he can meet and point to, rather than left as an unwritten discretion that can be granted, withheld, or traded for anything a probation officer wishes, with nothing in this record or anywhere else to say otherwise.

**Requested relief as to Part VIII:** an order directing that Mr. Bernecky be provided, before supervision begins, a defined standard or checklist governing what will satisfy “approved” under

Standard Condition 5 and “permission” under Standard Condition 8 — so that whether he may keep a home or speak to another person turns on a standard he can meet, and point to, rather than on a probation officer’s unstated discretion to grant or withhold either at will. Mr. Bernecky reserves the right to challenge before this Court the specifics or substance of any standard or checklist Probation proposes in response to this request.

## **IX. Standard Condition 12 — Risk Notification**

Standard Condition 12, as it appears in Mr. Bernecky’s Judgment, provides: “If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction. The probation officer may contact the person and confirm that you have notified the person about the risk.” That is the exact condition the Second Circuit later held invalid, agreeing that it “is vague and affords too much discretion to the probation officer,” and vacating it as indistinguishable from the employer-notification condition already struck down for leaving an employee’s notification obligation to “the probation officer’s unfettered discretion.” *United States v. Boles*, 914 F.3d 95, 111-12 (2d Cir. 2019) (quoting *United States v. Peterson*, 248 F.3d 79, 86 (2d Cir. 2001)).

Within two months of *Boles*, this District entered a standing order directing that the very language Mr. Bernecky’s Judgment still contains be removed from every Judgment imposing supervision, and replaced with a version requiring the court itself — not the probation officer alone — to determine, based on “criminal record, personal history and characteristics, and the nature and circumstances of [the] offense,” that a defendant poses a risk before any notification requirement attaches. *Amended Standing Order, In re United States v. Boles* (W.D.N.Y. Mar. 22, 2019) (Geraci, C.J.). That order

directs the amendment of “the Judgment and Commitment order in all criminal cases in which a term of probation or supervised release is imposed.” *Id.* Mr. Bernecky’s Judgment was entered on June 12, 2018 — nine months before the standing order issued — and it was never actually conformed to it. During a pre-supervision meeting, Mr. Bernecky’s probation officer presented him with this exact, since-invalidated language and required him to sign a document acknowledging his understanding of it. He remains subject to the exact condition the Second Circuit vacated in *Boles*, in a district that has already told itself to fix it — and that, in his case, it has not.

Mr. Bernecky asks the Court to enter the same corrected language the standing order already requires for every other defendant in this district, so that before supervision begins, his Judgment reads the way *Boles* — and this District’s own order implementing it — already require.<sup>2</sup>

**Requested relief as to Part IX:** an order amending Standard Condition 12 to match the language adopted by this District’s March 22, 2019 standing order following *Boles*: requiring the Court, in consultation with the probation officer and based on Mr. Bernecky’s criminal record, personal history and characteristics, and the nature and circumstances of his offense, to determine that he poses a risk before any notification requirement attaches.

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<sup>2</sup>Adopting the standing order’s language does not resolve every objection Mr. Bernecky has to the mechanism it creates, and nothing in this motion should be read as consent to it. The Second Circuit has twice held that a facial challenge to this exact mechanism is premature until an actual risk determination is made. *United States v. Traficante*, 966 F.3d 99 (2d Cir. 2020); *United States v. Birkedahl*, 973 F.3d 49 (2d Cir. 2020). In light of that authority, Mr. Bernecky asks only that the corrected language be properly applied to him now, and reserves the right to bring an as-applied challenge if and when a risk determination is actually made. In a nutshell, that challenge would be this: the consequence of a risk determination is not abstract. It means Probation actually contacting a specific person — an employer, a neighbor, a family member — and telling that person Mr. Bernecky poses a risk to them. That contact cannot be undone once made, and nothing in the standing order requires that it be preceded by notice to Mr. Bernecky, disclosure of the basis for the determination, an opportunity to contest it, or any hearing at all before the call is made. The Second Circuit has itself recognized that a risk finding of this kind would “enlarge” a defendant’s conditions, entitling him to a hearing under Rule 32.1(c). *Traficante*, 966 F.3d at 108 (citing *United States v. Murdock*, 735 F.3d 106, 114 (2d Cir. 2013)). Reaching that determination through an unreviewed consultation between the Court and a single officer, with no adversarial testing of whatever information supports it, falls well short of the notice, disclosure, and opportunity to be heard due process requires before a comparable liberty-restricting determination. *Morrissey v. Brewer*, 408 U.S. 471, 489 (1972); *Gagnon v. Scarpelli*, 411 U.S. 778, 782, 786 (1973) (extending the identical requirements to probationers).



## CONCLUSION AND REQUESTED RELIEF

Mr. Bernecky has not yet begun supervision, and that is exactly why this motion belongs before the Court now. Every condition addressed above shares the same flaw: read as written, each would reach further than anything the record shows the sentencing court actually decided. Several of them already have — the CIMP employer dispute, the minors-condition threat to a different job, and the risk-notification acknowledgment Mr. Bernecky was asked to sign all happened before supervision even started, and the same pattern will keep repeating with the next employer, the next provider, or the next officer unless the Court says otherwise. The rest have not happened yet only because they have not had the chance to. Fixing them now costs nothing; waiting for them to happen first, and litigating them through a violation proceeding after the fact, would cost Mr. Bernecky far more.

For the foregoing reasons, Mr. Bernecky respectfully requests that the Court:

1. As to Special Condition (a): declare that, absent a U.S.S.G. § 5F1.5 finding in the record, the condition does not apply to Mr. Bernecky's employment in any respect, regardless of what any employer's systems can or cannot do; modify the monitoring method to exclude indiscriminate keystroke logging; and strike "or operated" and "or used" from the condition's device-scope clauses, leaving "owned by the defendant" as the operative standard, together with a provision barring Mr. Bernecky's personal, private possession of any smart cell phone, laptop, desktop computer, tablet, or other device capable of connecting to the internet and displaying child-pornography images, excepting employer devices necessary for work performance — all as set out in Part I;
2. As to Special Conditions (b) and (h): provide that where Mr. Bernecky believes a rule imposed by a provider under either condition, or the provider's application of such a rule, conditions

his liberty beyond what this Court’s Judgment authorizes, he may object in writing to the probation officer and seek this Court’s clarification if overruled; that no violation report may be filed, and no violation found, based solely on a provider’s termination following such a timely objection; and that the Probation Office must arrange alternative treatment in that circumstance rather than treat the resulting absence of treatment as a violation, as set out in Part II;

3. As to Special Condition (c): add minor family members to the condition’s existing carve-out, clarify that incidental contact in the ordinary course of public life is not “deliberate contact,” and declare that the condition does not restrict Mr. Bernecky’s choice of employer or occupation, as set out in Part III;
4. As to Special Conditions (d) and (i): clarify that Special Condition (d) requires disclosure only of the vendor’s name for transactions made by credit card, debit card, PayPal or comparable electronic payment service, or cryptocurrency, and reaches no further; and vacate Special Condition (i) upon confirmation that restitution has been paid in full, as set out in Part IV;
5. As to Special Condition (e): strike the condition in full, as set out in Part V;
6. As to Special Condition (g): strike, in full and without replacement, the condition’s compelled-answer sentence, its accompanying non-waiver sentence, and the now-surplus disclosure sentence, leaving Mr. Bernecky’s obligation to *submit to* polygraph and CVSA testing otherwise intact, as set out in Part VI;
7. As to Special Condition (h): condition alcohol abstinence on an actual physician’s contraindication finding, as set out in Part VII (in addition to the Part II protections applicable to this condition’s treatment provider);
8. As to Standard Conditions 5 and 8: provide a defined standard or checklist for what satisfies

“approved” residence and “permission” for felon contact, so Mr. Bernecky is not left to guess or to seek advance clearance for every decision, as set out in Part VIII;

9. As to Standard Condition 12: apply the district’s existing risk-notification standing order to Mr. Bernecky, as set out in Part IX.

Respectfully submitted,

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Jeffrey Bernecky Defendant, *Pro Se*

## **CERTIFICATE OF SERVICE**

I hereby certify that on this \_\_\_\_ day of \_\_\_\_\_, 2026, a true and correct copy of the foregoing motion was served upon the United States Attorney’s Office for the Western District of New York by the method directed by the Court’s applicable rules for filings by self-represented litigants.

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Jeffrey Bernecky